

23VECV02061 23VECV02061

County: los-angeles

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Case Number: 23VECV02061 Hearing Date: August 19, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

Ofelia Fernandez, et

al.,

Plaintiffs.

v.

Ford Motor Company

Defendant.

Case Number Department

23VECV02061

107

COURT'S [TENTATIVE]

DECISION RE:

Motion
for Attorney Fees

[THE FOLLOWING IS A TENTATIVE
DECISION:] Deny

I.
BACKGROUND

On
April 8, 2019, Plaintiffs Ofelia Fernandez and Carlos Fernandez ("Plaintiffs")
purchased a 2018 Ford F-150 (the "Vehicle"). (Complaint ¶ 8.) The Vehicle was
defective. (Complaint ¶ 10.)

On
May 10, 2023, Plaintiffs filed a complaint against Defendants Ford Motor
Company ("Defendant") and Does 1 through 10, alleging causes of action for: (1)
violation of Song-Beverly Act - breach of express warranty; (2) violation of
Song-Beverly Act - breach of implied warranty; and (3) violation of the
Song-Beverly Act section 1793.2.

On
May 23, 2024, Plaintiffs filed a notice of settlement of entire case.

On
July 21, 2025, the court dismissed the case without prejudice and retained
jurisdiction under Code of Civil Procedure section 664.6. (07/21/25 Minute
Order.)

On
June 9, 2026, Plaintiffs filed a motion for attorneys' fees (the "Motion"). On
August 6, 2026, Defendant filed an opposition. On August 12, 2026, Plaintiffs
filed a reply.

II.
LEGAL
STANDARD

California
Rules of Court, rule 3.1702(b), original italics, states:

(1) Time for
motion

A notice of motion to
claim attorney's fees for services up to and including the rendition of
judgment in the trial court--including attorney's fees on an appeal before the
rendition of judgment in the trial court--must be served and filed within the
time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited
civil case or under rules 8.822 and 8.823 in a limited civil case.

(2) Stipulation
for extension of time

The parties may, by
stipulation filed before the expiration of the time allowed under (b)(1),
extend the time for filing a motion for attorney's fees:

(A) Until 60 days
after the expiration of the time for filing a notice of appeal in an unlimited
civil case or 30 days after the expiration of the time in a limited civil case;
or

(B) If a notice
of appeal is filed, until the time within which a memorandum of costs must be
served and filed under rule 8.278(c) in an unlimited civil case or under
rule 8.891(c)(1) in a limited civil case.

California

Rules of Court, rule 3.1702(d) states "For good cause, the trial judge may
extend the time for filing a motion for attorney's fees in the absence of a
stipulation or for a longer period than allowed by stipulation."

In

Hatlevig v. General Motors LLC ("Hatlevig") (2026) 118
Cal.App.5th 644, 649, the Court of Appeal noted:

With exceptions not
relevant to this appeal, the time for filing a notice of appeal is the earlier
of 60 days after service of notice of entry of judgment or 180 days after entry

of judgment. [Citation.] A voluntary dismissal is “effectively a ‘judgment’” within the meaning of the rule prescribing the time to appeal. [Citations.] Thus, “the clock starts to run [on the time to move for attorney fees] from either the service of notice of entry of judgment or dismissal (starting a 60-day clock), or if no such notice is given, the entry of judgment or dismissal (starting a 180-day clock).”

The
Court further stated:

Rule 3.1702 does
not require an appealable order or judgment even though it uses “the time for filing a notice of appeal” to set the deadline for serving and filing a motion for attorney fees. [Citation.] A voluntary dismissal, though not appealable, starts the clock running on the time to move for attorney fees when the dismissal concludes the litigation and triggers a right to fees.

(Id.)

III. DISCUSSION

Plaintiffs
move for an order awarding Plaintiffs attorneys’ fees in the sum of \$26,376.25. (Motion p. 21.) This reflects fees in the sum of \$17,901.00, a 1.25 multiplier enhancement increasing the award by \$4,475.25, and an additional \$4,000.00 in fees for Plaintiffs’ counsel to review the opposition, draft a reply, and appear at the Motion’s hearing. (Motion p. 21.)

In
opposition, Defendant relies on *Hatlevig*, supra, 118 Cal.App.5th and argues the Motion is untimely. (Opposition p. 7.) Defendant notes the court dismissed the case on July 21, 2025. (Motion p. 8.) Plaintiffs filed the Motion on June 9, 2026, nearly eleven months after the case was dismissed. (Motion p. 8.)

In
reply, Plaintiffs argue the Motion is timely and Defendant misapplies *Hatlevig*. (Reply pp. 2, 4.) Plaintiffs argue that *Madrigal v. Hyundai Motor America* (“*Madrigal*”) (2023) 90 Cal.App.5th 385, affd. (2025) 17 Cal.5th 592, “establishes that

no 'judgment' has been entered where attorneys' fees remain unresolved under the settlement agreement" and Hatlevig is procedurally distinguishable.

(Reply p. 4.) Specifically, Plaintiffs note that in in Hatlevig, the dismissal was pursuant to California Rules of Court, rule 3.1385(b) but here, the court retained jurisdiction under Code of Civil Procedure section 664.6. (Reply p. 6.) Plaintiffs further argue that even if the Motion is untimely, good cause exists to extend the time for filing the Motion under California Rules of Court, rule 3.1702(d) because the court's July 21, 2025, "marked that the dismissal was made pursuant to Code of Civil Procedure Section 664.6" and "Plaintiffs' counsel reasonably understood that the Court's express retention of jurisdiction under § 664.6, combined with the parties' clear contemplation that a fee motion would still be filed, meant the ordinary post-dismissal clock under rule 3.1702 had not been triggered in the rigid manner Defendant now asserts." (Reply pp. 3-4.) Plaintiffs argue that "[t]hat understanding, even if ultimately incorrect under Hatlevig, was reasonable given the text of the Court's own order and the unsettled application of Hatlevig to dismissals in which the trial court itself retains jurisdiction on the record." (Reply pp. 3-4.)

The

court is not persuaded this matter is materially distinguishable from Hatlevig. Hatlevig sets forth the rule that "[a] voluntary dismissal, though not appealable, starts the clock running on the time to move for attorney fees when the dismissal concludes the litigation and triggers a right to fees." (Hatlevig, supra, 118 Cal.App.5th at p. 649.) Plaintiffs do not sufficiently explain how the dismissal here was not a voluntary dismissal. In contrast, the court's July 21, 2026 minute order demonstrates the court dismissed the matter at Plaintiffs' request. (07/21/25 Minute Order.)

Plaintiffs

also cite Madrigal, supra, 90 Cal.App.5th at p. 385 for the proposition that "no 'judgment' has been entered where attorneys' fees remain unresolved under the settlement agreement[.]" (Reply p. 4.) Plaintiffs further argue that "where a settlement conditions dismissal on full payment, the 'judgment' equivalent does not materialize until that condition is satisfied." (Reply p. 5.) Finally, Plaintiffs argue that because the fees issue remains unresolved here and no dismissal with prejudice has been filed, so "[t]he proxy for final judgment therefore does not yet exist, and no deadline under Rule 8.104 has been triggered." (Reply p. 5.)

In

Madrigal, the Court of Appeal considered “whether the penalty provisions of section 998 apply when a case ends, not with a judgment after trial, but with a settlement that provides for the payment of money by defendant in exchange for a dismissal with prejudice by the plaintiff.” (Madrigal, supra, 90 Cal.App.5th at p. 393.) Madrigal did not consider whether a judgment has been entered when the attorneys’ fees remain unresolved. As noted in Madrigal, “[i]t is well settled that appellate opinions are not authority for propositions that are not considered and decided.” (Id. at p. 405.)

Further,

even if the Court did consider the issue, Madrigal is distinguishable. In that matter, Defendant’s counsel represented that the plaintiffs’ counsel “wanted ‘to make sure that the payment be made and then . . . dismissal with prejudice would only happen after payment of the restitution to the Plaintiffs and the fees which will be [by] motion [for] fees and costs.’” (Madrigal, supra, 90 Cal.App.5th at p. 392, original brackets.) Further, the plaintiffs’ counsel “conceded that the settlement agreement contemplated entry of judgment following the fee award.” (Id. at p. 402, fn. 12.)

Defendant

made a 998 Offer on May 15, 2024. (Richardson Declaration ¶ 3.) Plaintiffs accepted the 998 Offer on May 22, 2024. (Richardson Declaration ¶ 3.) The 998 Offer states, in relevant part:

Plaintiffs will

prepare and file a proposed judgment within 14 days after acceptance of this offer. The judgment shall include a provision allowing Plaintiffs to petition the Court for an award of attorneys’ costs and fees reasonably incurred in and for Plaintiffs’ action and recoverable pursuant to California Civil Code section 1794(d). Any motion for fees must be made pursuant to California Rules of Court, Rule 3.1702.

(Richardson

Declaration Ex. A pdf p. 6.) By requiring the proposed judgment to include language permitting Plaintiffs to petition the court for their fees and costs, the 998 Offer specifically contemplated that a judgment would be entered before the Motion would be made. This is distinguishable from Madrigal.

The

court dismissed the case on July 21, 2026. (07/21/26 Minute Order.) Plaintiffs were directed to give notice. (07/21/26 Minute Order.) The court has no record of notice of the order. As such, the court concludes the 180-day time limit applies here.

Plaintiffs

filed the Motion on June 9, 2026. June 9, 2026, is more than 180 days after July 21, 2026. Thus, Plaintiffs' Motion is untimely.

Plaintiffs

argue good cause exists to permit the untimely Motion because they were relying on an unsettled area of law. (Reply p. 3.) The court is not persuaded. The court acknowledges Hatlevig, supra, 118 Cal.App.5th was issued on February 17, 2026. February 2026 was months after the court dismissed this matter. But to the extent Plaintiffs are arguing they were relying on a pre-Hatlevig unsettled area of law, Plaintiffs filed the Motion on June 9, 2026, nearly four months after the Court issued the Hatlevig decision. No good cause has been shown for this significant delay.

Plaintiffs

also argue they relied on the court's July 21, 2026, minute order, and believed "that the Court's express retention of jurisdiction under § 664.6, combined with the parties' clear contemplation that a fee motion would still be filed, meant the ordinary post-dismissal clock under rule 3.1702 had not been triggered in the rigid manner Defendant now asserts." (Reply pp. 3-4.)

The

court's July 21, 2026, minute order stated:

The matter is called
for hearing.

Plaintiff indicates

fees are outstanding and requests the case be dismissed without prejudice.

Court orders the

entire case dismissed Without Prejudice. Court retains jurisdiction to make orders to enforce any and all terms of settlement, including judgment, pursuant to Code of Civil Procedure section 664.6.

Plaintiff to give
notice.

(07/21/26
Minute Order.)

To
the extent Plaintiffs are arguing they believed they had unlimited time to file
the Motion, the court is not persuaded that belief was reasonable. The court's
order says nothing about eliminating the time limitation set forth in
California Rules of Court, rule 1702(b). Moreover, Plaintiffs expressly agreed
in the 998 Offer that "[a]ny motion for fees must be made pursuant to
California Rules of Court, Rule 3.1702." (Richardson Declaration Ex. A pdf p.
6.)

Finally,
there is nothing reasonable about the nearly eleven-month delay between the
court's dismissing the matter without prejudice and Plaintiffs filing the
Motion. (07/21/25 Minute Order; Motion.)

The
court finds no good cause to consider the untimely Motion.

IV.
CONCLUSION

For the foregoing
reasons, the Motion is denied as untimely.

Dated: August 19, 2026 _____ Hon. Eric Harmon

Judge of the Superior Court